

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA**

In the matter of an Appeal made under
Section 331 of the Code of Criminal
Procedure Act No.15 of 1979.

Court of Appeal No: 1. Tokhirove Tukhirbanu alias Jasmine
CA/HCC/0217-0218/2025 2. Thangaraj Lorence Thilagar

High Court of Colombo

Case No. HC 3294/2021 **ACCUSED-APPELLANT**

Vs.

The Hon. Attorney General
Attorney General's Department
Colombo-12

COMPLAINANT-RESPONDENT

BEFORE : **P. Kumararatnam, J.**
R.P.Hettiarachchi, J.

COUNSEL : **Dinidu Ratnayake with Vinura Jinadasa**
For the 1st Appellant.
Prashan Wickramaratne for the 2nd
Appellant.
Hiranjan Peiris, PC, ASG, for the
Respondent.

ARGUED ON : **22/07/2026**

DECIDED ON : **22/09/2026**

JUDGMENT

P. Kumararatnam, J.

The above-named Accused-Appellants (hereinafter referred to as the Appellants) were indicted by the Attorney General in the High Court of Colombo on the following charges namely:

Count 01 - Between 01.10.2019 and 22.10.2019, at Colombo, the 1st Accused committed the offence of trafficking by recruiting Oksana Karpowa Odlovina (PW01) through fraud or deception and/or by performing any other act to bring PW 01 to Sri Lanka for the purpose of prostitution or other forms of sexual exploitation, an offence punishable under Section 360C(2) read with Section 360C(1)(b) of the Penal Code, as amended by Act No. 16 of 2006.

Count 02 - At the same time period, place and during the same transaction as mentioned in the 01st Count, the 2nd Accused-Appellant in order to commit the offence mentioned in the 01st Count, aided and abetted the 01st Accused-Appellant to commit the offence of trafficking by recruiting Oksana Karpowa Odlovina (PW 01) through fraud or deception and/or by performing any other act to bring PW 01 to Sri Lanka for the purpose of prostitution or other forms of sexual exploitation, an

offence punishable under Section 360C(2) read with Section 360C(1)(b) and Section 102 of the Penal Code, as amended by Act No. 16 of 2006.

Count 03 - In the same transaction as the 1st Charge, on or about 09.01.2020, at the Hilton Colombo Residence, Kompannavidiya, within the jurisdiction of this Court, the 1st Accused committed the offence of procuration, punishable under Section 360A(1) of the Penal Code as amended by Act No. 22 of 1995, by procuring one Oksana Karpowa Odlovina to become a prostitute in Sri Lanka.

Count 04 - At the same period and during the same transaction as mentioned in the 01st Count, the 2nd Accused-Appellant in order to commit the offence mentioned in the 03rd Count, aided and abetted the 01st Accused-Appellant to commit the offence of procuration, punishable under Section 360A(1) read with Section 102 of the Penal Code as amended by Act No. 22 of 1995, by procuring one Oksana Karpowa Odlovina to become a prostitute in Sri Lanka.

Charge 05 - On or about 12.01.2020, at the Hilton Colombo Residence, Kompannavidiya, within the jurisdiction of this Court, the 1st Accused committed the offence of procuration, punishable under Section 360A(1) of the Penal Code as amended by Act No. 22 of 1995, by procuring one Oksana Karpowa Odlovina to become a prostitute in Sri Lanka.

Charge 06 - At the same time period, place and during the same transaction as mentioned in the 05th Count, the 2nd Accused-Appellant in order to commit the offence mentioned in the 05th Count, aided and abetted the 01st Accused-Appellant to commit the offence of procuration, punishable under Section 360A(1) read with Section 102 of the Penal Code as amended by Act No. 22 of 1995, by procuring one Oksana Karpowa Odlovina to become a prostitute in Sri Lanka.

Charge 07 - On or about 02.02.2020, at the Hilton Colombo Residence, Kompannavidiya, within the jurisdiction of this Court, the 1st Accused

committed the offence of procuration, punishable under Section 360A(1) of the Penal Code as amended by Act No. 22 of 1995, by procuring one Oksana Karpowa Odlovina to become a prostitute in Sri Lanka.

Charge 08 - At the same time period, place and during the same transaction as mentioned in the 07th Count, the 2nd Accused-Appellant in order to commit the offence mentioned in the 07th Count, aided and abetted the 01st Accused-Appellant to commit the offence of procuration, punishable under Section 360A(1) read with Section 102 of the Penal Code as amended by Act No. 22 of 1995, by procuring one Oksana Karpowa Odlovina to become a prostitute in Sri Lanka.

After the trial the Appellants were convicted as charged and were sentenced as follows:

1st Appellant

First count – 07 years rigorous imprisonment with a fine of Rs.25000/- subject to a default sentence of 06 months simple imprisonment.

Third count – 07 years rigorous imprisonment with a fine of Rs.25000/- subject to a default sentence of 06 months simple imprisonment.

Fifth count – 07 years rigorous imprisonment with a fine of Rs.25000/- subject to a default sentence of 06 months simple imprisonment.

Additionally, she was ordered to pay a compensation of Rs.500,000/- with a default sentence of 06 months simple imprisonment.

2nd Appellant

Second count – 07 years rigorous imprisonment with a fine of Rs.25000/- subject to a default sentence of 06 months simple imprisonment.

Fourth count – 07 years rigorous imprisonment with a fine of Rs.25000/- subject to a default sentence of 06 months simple imprisonment.

Sixth count – 07 years rigorous imprisonment with a fine of Rs.25000/- subject to a default sentence of 06 months simple imprisonment.

Additionally, he was ordered to pay a compensation of Rs.500,000/- with a default sentence of 06 months simple imprisonment.

Being aggrieved by the aforesaid conviction and sentence, the Appellants preferred this appeal to this court.

The Learned Counsel for the Appellants informed this court that the Appellants have given consent to argue this matter in their absence. At the time of argument, they were connected via the Zoom platform from the prison.

Although the learned Counsel for the Appellants, in their written submissions raised several grounds of appeal, at the time of argument, both Counsel informed this court that they are only contesting the sentences imposed in this case.

Background of the case

In this case, the Appellants are wife and husband respectively, it was alleged that the Appellant had procured the victim for sexual activities in Sri Lanka.

The victim, PW1, is a Russian National and had come to Sri Lanka several times and worked in shops before she had gotten to know the 1st Appellant. The 1st Appellant had brought her back to Sri Lanka and had procured her for sexual activities until the 1st Appellant was sentenced to jail. After the 1st Appellant was jailed, the 2nd Appellant had continued to procure the victim for sexual activities until she lodged her complaint with the Tourist Police.

The victim had visited Sri Lanka on five occasions prior to 2019, which was confirmed by the Department of Immigration and Emigration. The victim had become acquainted with the 1st Appellant via Facebook and had thereafter come to Sri Lanka on 22.10.2019 using an air ticket sent by the 1st Appellant. Upon her arrival to Sri Lanka, she was engaged in prostitution by PW1. This was continued by the 1st Appellant until late January 2020. Thereafter, the 2nd Appellant had continued the same until March 2021. When she asked for money from the 2nd Appellant to purchase an air ticket to return to her country, the 2nd Appellant had refused to give money to her. As a result, she had lodged her first complaint at the Sri Lanka Tourist Police in Colpetty regarding a dispute over money in the month of March 2021 and had left the accommodation provided at the Peterson Lane. The victim had not mentioned about the procuration by the Appellants to the police. In her second statement given in May 2021 too, she had not mentioned about the procuration by the Appellants to the police.

In the meantime, a person called Rameez had taken her to Trincomalee and assaulted her. She had lodged a complaint at the Trincomalee Police regarding this incident but had not disclosed that she was used for prostitution by the Appellants.

After coming to Colombo, she had rented a room at Roadster Studio, Torrington, Colombo. At that time, a complaint was lodged by the IOM regarding her detention at the Roadster Hotel and the CID had commenced investigation and arrested the Appellants and filed the indictment in the High Court of Colombo.

The JMO and the Consultant Physician both had not conducted a proper physical examination but had submitted a report that the victim was suffering from severe depression and post-traumatic stress disorder.

Both Counsel had strenuously argued that the Learned High Court Judge has failed to consider the sentencing submissions made on behalf of the Appellants.

As stated above, the Appellants are wife and husband and have children. According to the submissions made before the High Court it was brought to the attention of the Court that the 1st Appellant had married previously and had two male children. One child, was 17 years old and the other child was 15 years old at the time of sentencing. The elder son had gone back to Uzbekistan and the younger child had been admitted to the Bandaragama Child Care Centre, where he is presently residing.

Upon the present marriage, she had delivered a female child who was 07 years of age at the time of sentencing and she too had been admitted to a child care home given the present situation. The 2nd Appellant was a three-wheeler driver and is the sole breadwinner of his family. He bore the responsibility of looking after his mother and sister who was an undergraduate at a university. Both the Counsel submitted that their children are suffering due to their incarceration and therefore seeks the mercy of this court to re-consider the sentence only to re-unite with their children.

The learned Deputy Solicitor General in keeping with the highest traditions of the Attorney General's Department too agreed that this is an appropriate case to re-consider the sentence imposed by the Learned High Court Judge in considering the vulnerable situation of the children of the Appellants.

After the conviction of an Accused person, the discretion in imposing the relevant sentence would lie with that particular Court, while being guided by a number of factors, such as the circumstances under which the offence was committed by the Accused. Where such specific sentencing guidelines would not be available, it would be necessary to discuss the principles that must be followed when imposing sentences.

In the case of **The Attorney General v H.N.de Silva** 57 NLR 121 Per BASNAYAKE, A.C.J.-

" A Judge should, in determining the proper sentence, first consider the gravity of the offence as it appears from the nature of the act itself and should have regard to the punishment provided in the Penal Code or other statute under which the offender is charged. He should also regard the effect of the punishment as a deterrent and consider to what extent it will be effective. If the offender held a position of trust or belonged to a service which enjoys the public confidence that must be taken into account in assessing the punishment. The incidence of crimes of the nature of which the offender has been found to be guilty and the difficulty of detection are also matters which should receive due consideration. The reformation of the criminal, though no doubt an important consideration, is subordinate to the others I have mentioned. Where the public interest or the welfare of the State (which are synonymous) outweighs the previous good character, antecedents and age of the offender, public interest must prevail. "

In the case of **Don Percy Nanayakkara v The Republic of Sri Lanka** [1993] 1 SLR 71 the Court held that:

"In assessing punishment, the Court has to consider the matter from the point of both the offender and the public. The accused had held high public office and exercised extensive statutory power in conducting public examinations in this country. These examinations have to be conducted fairly and the results declared accurately. Thousands of students who face public examinations, every year, should have complete confidence in the fairness and accuracy of every process of the examinations. The accused has subverted the very basis of this confidence by his conduct in dishonestly showing favour to persons with whom he was acquainted.

Therefore, public interest demands that he should be imposed a deterrent punishment.”

In the case of **Asan Mohammed Rizwan v Attorney General**, CA [PHC] APN 141/2013 decided on March 25, 2015 it was held:

“Sentencing is an important aspect in the administration of criminal justice system. A sentence ranges from death penalty to the mere censure in the form of good behavior bond or probation. There are multiple considerations relevant to the determination of a sentence. The most important consideration is the seriousness of the crime. Jurisprudentially, this position is persuasive despite pragmatic difficulties associated with matching the harshness of the sanction to the severity of the crime.

The judges are to pass lawful and appropriate sentence upon the accused being convicted. In doing so, judges are to address their minds to the objective of sentencing particularly when exercising the discretion given to them under the law. Then only a correct sentence could be passed upon a convicted accused. If not, criticism on lack of uniformity, consistency and transparency in imposing sentences are bound to surface. Therefore, it is necessary for the judges to keep in mind the objectives of sentencing and also the sentencing guidelines, in order to arrive at the correct and appropriate decision.

Objectives of sentencing include the following:

- (i) To punish offenders to an extent and in a manner, which is just in all the circumstances;*
- (ii) To protect the community from offender;*
- (iii) To deter offenders or other persons from committing offences of the same or similar nature;*

- (iv) *To establish conditions so that rehabilitation of offenders may be promoted or facilitated;*
- (v) *To signify that the court and the community denounce the commission of such offences;*
- (vi) *To maintain the required standards of societal expectations in making decisions;*
- (vii) *To prevent overcrowding prisons also could be considered as one such objective particularly when it comes to developing countries such as ours.”*

In the case of **Bandage Sumindra Jayanthi v. Attorney General** (2015) 1 SLR 20 it was held:

“Sentencing belongs to the domain of the trial judge but that is no ground for the prosecuting counsel to be complacent about his role in responding to the mitigatory plea of a defense counsel.”

Under Section 360C of the Penal Code as amended, the minimum sentence is 2 years imprisonment of either description and the maximum sentence is 20 years imprisonment of either description.

Under Section 360A of the Penal Code as amended, the minimum sentence is 2 years imprisonment of either description and the maximum sentence is 10 years imprisonment of either description.

The Learned High Court Judge had imposed 07 years rigorous imprisonment on each of the counts they had been charged subject to each sentence running concurrently.

Considering all the circumstances with special attention to their children, I consider imposing 4 years rigorous imprisonment is appropriate in this case. Hence, their sentence on each count is reduced to 4 years rigorous

imprisonment which will run concurrently. Hence, each Appellant will have to serve 04 years rigorous imprisonment. The fine and the compensation imposed by the Learned High Court Judge will remain the same.

Considering the fact that the Appellants have been in remand custody since their sentence, I order their sentences to take effect from the date of conviction, namely 10.12.2024.

The Appeal is dismissed subject to the variation in the prison sentence.

The Registrar is directed to send this judgment to the High Court of Colombo along with the original case record.

JUDGE OF THE COURT OF APPEAL

R. P. Hettiarachchi, J

I agree.

JUDGE OF THE COURT OF APPEAL